

Dharampal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 January 2025 · 2025:AHC:2189-DB · WRIT - C No. 40898 of 2024 · **Writ disposed of; petitioner relegated to representation under clauses 4.4 and 6.5.**

HEADNOTE

Factual disputes as to a wrong connection address, mutation of the connection after the consumer's death, load factor and quantification of electricity dues are for the competent authority under clauses 4.4 and 6.5 of the U.P. Electricity Supply Code, 2005. The writ is disposed of with liberty to represent; that authority shall consider and pass orders within four weeks.

FACTUAL SUMMARY

Dharampal challenged a consumption bill issued by respondent no. 3, the distribution licensee, on four grounds: the connection address was wrong; his father had died and the connection should be mutated in his name; the load factor was incorrectly recorded; and the dues were wrongly quantified. Licensee's counsel submitted that these were factual issues for the competent authority under the Supply Code. The Division Bench disposed of the writ without examining the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

mutation of connection after consumer's death

HOLDING

A claim to mutate an existing electricity connection in the occupier's name after the recorded consumer's death raises factual issues for the competent authority under clause 4.4 of the U.P. Electricity Supply Code, 2005, not for a writ court. The petitioner may make an exhaustive representation to the third respondent, who shall consider the issues and pass orders within four weeks. ¶ 1

HOLDING-UNIT · UP-2005::6.5

billing objection — address, load factor, quantification

HOLDING

Objections that a consumption bill records a wrong address or load factor, or wrongly quantifies dues, require determination of facts and are to be raised before the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ court will not decide those issues on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILL (WRONG ADDRESS, LOAD FACTOR, QUANTIFICATION OF DUES) AND MUTATION OF THE CONNECTION IN THE PETITIONER'S NAME AFTER HIS FATHER'S DEATH

Left to the third respondent under clauses 4.4 and 6.5, to be decided within four weeks of a representation. ¶ 1